

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Adam J. Scanlon

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to Prevent Repricing for Individuals based on Consumer Engagement, or the PRICE Act.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>1/29/2026</i>

HOUSE No.

By Representative Scanlon of North Attleborough, a petition (subject to Joint Rule 12) of Adam J. Scanlon for legislation to prevent repricing for individuals based on consumer engagement. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to Prevent Repricing for Individuals based on Consumer Engagement, or the PRICE Act.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 93A, as appearing in the 2024 Official Edition, is
2 hereby amended by adding the following definition:-

3 (e) “Online surveillance pricing”, offering different prices for purchase of services or for
4 purchase or rental of property, tangible or intangible, real, personal or mixed, based on a
5 person’s online activity, including but not limited to internet searches, browsing history, location
6 data, device type, clicks, time spent looking at various items, placement of items in a digital cart
7 or preparing them for online checkout. This shall not include: (i) price differences based on
8 reasonable cost differences in providing the product or service to different consumers; (ii) bona
9 fide discounts that are clearly disclosed and uniformly offered to all members of a broadly
10 defined group including but not limited to discounts for senior citizens, veterans, or students; (iii)
11 bona fide discounts offered to individuals who affirmatively and knowingly enroll in a loyalty
12 program; and (iv) pricing for insurance services or credit products.

13 SECTION 2. Section 2 of said chapter 93A is hereby amended by inserting in line 2,
14 after the word “commerce” following words:-
15 “, including online surveillance pricing, defined pursuant to section 1 of this chapter,”